



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 15TH REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 20TH DAY OF APRIL, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT
HON. TOMASITO SANTIAGO C. TURINGAN
HON. APOLONIO B. PANONG
HON. FELIX C. ABAÑO
HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA
HON. ROSSANO C. VALENCIA
HON. NESTOR F. DALIDA
HON. PEDRO S. MUSA – LNB
HON. JUDY ROSE T. GALLARDO – SKMF

ABSENT:

NONE

- - -

Resolution No. 139-2021

RESOLUTION ADOPTING AN ORDINANCE ESTABLISHING POLICIES AND GUIDELINES ON OVERTIME SERVICES AND COMPENSATORY TIME-OFF FOR GOVERNMENT EMPLOYEES IN THE MUNICIPAL GOVERNMENT OF DAET, CAMARINES NORTE

WHEREAS, Section 1 (d) of Presidential Administrative Order No. 103 dated August 31, 2004 implemented the Compensatory Time-Off (CTO) as an alternative to Overtime Pay, henceforth, the Civil Service Commission (CSC) and the Department of Budget and Management (DBM) issued Joint Circulars No. 2 s. 2004 dated October 4, 2004 and No. 2-A s. 2005 dated July 1, 2005 prescribing guidelines for availment of the CTO;

WHEREAS, the CTO was implemented as austerity measures of the government in order to meet the fiscal target through prudent fiscal management in the execution of sound budget policy to ensure balance budget;

WHEREAS, the Civil Service Commission (CSC) and Department of Budget and Management (DBM) issued Joint Circular No. 2 s. 2015 dated November 25, 2015 prescribing guidelines on overtime services and overtime pay for government employees;

WHEREAS, there are various department/ offices in the municipal government of Daet, Camarines Norte that performs their duties and functions beyond the regular working hours and yet not receiving monetary value for overtime services due to budget constraint, hence, compensatory time-off may be an option;

WHEREAS, there is a need to establish policies and guidelines on overtime services and compensatory time-off for government employees in the municipal government of Daet, Camarines Norte to implement fair, equal and justifiable overtime services to safeguard the interest of the government;

NOW THEREFORE, after due deliberation, on motion of Councilor William Carlo R. Avila, with Councilors Tomasito Santiago C. Turingan and Nestor F. Dalida as co-movants, seconded by Councilors Marlon T. Bandelaria, Judy Rose T. Gallardo, Apolonio B. Panong, Rossano C. Valencia, Pedro S. Musa and Felix C. Abaño;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 414-2021

AN ORDINANCE ESTABLISHING POLICIES AND GUIDELINES ON OVERTIME SERVICES AND COMPENSATORY TIME-OFF FOR GOVERNMENT EMPLOYEES IN THE MUNICIPAL GOVERNMENT OF DAET, CAMARINES NORTE

BE IT ORDAINED, by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "Guidelines on Overtime Services and Compensatory Time-Off Ordinance in Municipal Government of Daet, Camarines Norte".

SECTION 2. PURPOSE. This Ordinance is enacted to provide uniform policy on overtime services and the availment of compensatory time-off, in lieu of overtime pay in the municipal government of Daet, Camarines Norte.

SECTION 3. SCOPE. This Ordinance shall cover incumbents of positions of chief of division and below whose employment is in the nature of a regular or co-terminus employee of the LGU Daet.

SECTION 4. EXEMPTION. The compensatory time-off granted in this Ordinance does not cover the following government personnel:

- a. Those occupying positions whose ranks are higher than chiefs of division;
- b. Those appointed to positions in the Career Executive Service;
- c. Elective officials; and
- d. Military and uniformed personnel

SECTION 5. DEFINITION OF TERMS. As used in this Ordinance, the following term shall mean as follows:

- a. Compensatory Overtime Credit (COC) – refers to the accrued number of hours an employee earns as a result of services rendered beyond regular working hours, and/or those rendered on Saturdays, Sundays, Holidays or scheduled days off without the benefit of overtime pay.



- b. Compensatory Time-Off (CTO) – refers to the number of hours or days an employee is excused from reporting for work with full pay and benefits. It is a non-monetary benefit provided to an employee in lieu of overtime pay.

SECTION 6. GUIDELINES FOR OVERTIME SERVICES.

- a. Employees are required to render forty (40) hours of work in a week, subject to the work schedule adopted by the agency/department. In the exigency of the service, employees may be required to render services beyond regular working hours, subject to recommendation of department head and approval of local chief executive.
- b. The department head shall determine the need for overtime services. In this regard, the Office concerned shall issue an Office Order specifying the date and time for rendition of overtime, and its purpose for approval of the local chief executive.
- c. The rendition of overtime services shall be authorized only when extremely necessary, such as when a particular work or activity cannot be completed within the regular work hours and that non-completion of the same will:
 - c.1. Cause financial loss to the government or its instrumentalities;
 - c.2. Embarrass the government due to its inability to meet its commitments;
or
 - c.3. Negate the purposes for which the work or activity was conceived.
- d. Only employees who arrive on or before the start of the workday shall be allowed to render overtime work.
- e. Overtime services may be authorized for the following activities:
 - d.1 Implementation of special priority programs and projects embodied in Presidential directives with specific dates of completion;
 - d.2 Completion of infrastructure and other projects with set deadlines when due to unforeseen events the deadline cannot be met without resorting to overtime work;
 - d.3 Essential public services during emergency or critical situations that would require immediate or quick response;
 - d.4 Relief, rehabilitation, reconstruction, and other work or services during calamities and disasters;
 - d.5 Seasonal work, such as but not limited to, preparation of budgets and annual reports, preparation of developmental plans and accomplishments, in order to meet scheduled deadlines;
 - d.6 Preparation of financial and accountability reports required by oversight agencies like Congress of the Philippines, Office of the President, Commission on Audit, Department of Budget and Management, and National Economic Development Authority;
 - d.7 Services rendered by drivers and other immediate staff of officials when they are required to keep the same working hours as these officials;



- d.8 Elections related activities which the Office is required to perform specific duties and responsibilities;
 - d.9 Services rendered beyond regular working hours, such as but not limited to, conduct of surprise inspection or raid, social services rescue mission, among others;
 - d.10 Such other activities as are needed to meet performance targets or deliver services to the public as may be recommended by the department head.
- f. One-hour breaks shall be observed for breakfast, lunch, or supper and rest, and every three (3) hours continuous overtime service, or as may be necessary.
- g. Rendering overnight overtime service shall be resorted to only when extremely necessary. No employee shall be allowed to render overnight service for more than 2 consecutive nights, for health reasons and to ensure employee productivity.

SECTION 7. COMPUTATION OF COCs. The Compensatory Overtime Credit (COC) is expressed in number of hours, computed as follows:

- a. For overtime services rendered on weekdays or scheduled work days:

$$\text{COC} = \text{number of hours of overtime services} \times 1.0$$

- b. For overtime services rendered on weekends, holidays, scheduled days off or emergency suspension of work:

$$\text{COC} = \text{number of hours overtime services} \times 1.5$$

SECTION 8. ACCRUAL AND USE OF COCs.

- a. Each employee may accrue not more than forty (40) hours of COCs in a month. In no instance, however, shall the unexpended balance exceed one hundred twenty (120) hours.
- b. The COCs should be used as time-off within the year these are earned. The unutilized COC should not be carried over in the ensuing year, hence, are non-cumulative.
- c. The COCs shall be considered as official time for the following purposes:
- c.1. Compliance with compensation rules relative to the entitlement to PERA, Additional compensation, year-end benefits, and other benefits received on a regular basis; and
 - c.2. Computation of service hours for entitlement to sick and vacation leave credits, and step increment due to length of service.



SECTION 9. LIMITATION ON THE USE OF COCs.

- a. The COCs cannot be used to offset undertime/s or tardiness incurred by the employee during regular working days.
- b. The COCs earned cannot be converted to cash, hence, are non-commutative.
- c. The COCs will not be added to the regular leave credits of the employee. Hence, it is not part of the accumulated leave credits that is paid out to the employee. Each employee of the municipal government of Daet shall have a separate Compensatory Overtime Credit (COC) Card at the Human Resource Management Office distinct from Leave Card.

SECTION 10. EFFECTS ON PERSONNEL MOVEMENT.

- a. In cases of resignation, retirement, or separation from the service, the unutilized COCs are deemed forfeited.
- b. In case of detail, secondment or transfer to another agency, the COCs earned in one agency cannot be transferred to another agency, nor could the employee receive the monetary equivalent thereof.
- c. In case of promotion, except when promoted to a position not qualified to receive overtime pay under previous issuances, the employee will retain his or her accrued COC.

SECTION 11. ISSUANCE OF COC EARNED. An employee who has earned COC shall be granted a Certificate of COC Earned (Annex A) duly signed by the department head and approved by the local chief executive. The certificate indicates the number of hours of earned COC by the employee in a month. The certificate would be issued at the end of each month.

SECTION 12. AVAILMENT OF COMPENSATORY TIME-OFF (CTO).

- a. The CTO may be availed of in blocks of four (4) or eight (8) hours. Offices adopting alternative work schedules should make parallel adjustments in the availment blocks, tantamount to either a half or full day leave from work.
- b. The employee may use the CTO continuously up to a maximum of five (5) consecutive days per single availment, or on staggered basis within the year.
- c. The employee must first obtain recommendation from department head and approval of the local chief executive regarding the schedule of availment of CTO. The management shall accommodate, to the extent practicable, all applications for availment of CTO at the time requested by the employee, provided, that the regular frontline services of the office will not be affected. In the exigency of the service, however, the schedule may be recalled and subsequently rescheduled by the department head within the year.



SECTION 13. PROCEDURES. The following procedures shall be observed in the rendition of overtime services and availment of compensatory time-off:

- a. The department head issues an Office Order recommending for rendition of overtime services chargeable as compensatory time-off, indicating the tasks to be completed and the expected time of completion, subject for approval of the local chief executive;
- b. The copy of the duly authorized office order shall be furnished at the Human Resource Management Office (HRMO) and Department Head for records and monitoring purposes;
- c. The employee renders overtime services as stipulated in the Office Order;
- d. The department head issues Certificate of Completion for the rendered overtime services as basis of the HRMO in preparation of COC;
- e. The Human Resource Management Office (HRMO) prepares a summary of overtime services rendered in a month, and computes the equivalent COCs, for the purpose of the issuance of the COC Certificate;
- f. The Local Chief Executive issues the Certificate of COCs, specifying the number of COCs earned in a month;
- g. The employee requests recommendation from the Department Head on the schedule of CTO, subject for approval of the Local Chief Executive;
- h. The employee avails of the CTO upon approval.

SECTION 14. DUTIES AND RESPONSIBILITIES. The following duties and responsibilities are vested to:

A. Department Head

1. Recommend to the local chief executive the rendition of overtime services of an employee under his/her supervision;
2. Monitor the overtime services rendered by the employee in accordance to the tasks to be completed and time duration;
3. Issue certificate of completion of rendered overtime services.

B. Local Chief Executive

1. Authorize employees to render services beyond regular working hours in accordance with these guidelines and the rules and regulations on overtime service;
2. Grant Certificate of COC Earned, concurrently setting safeguard measures to prevent any form of fraud and/or duplicity;



3. Approve/disapprove schedule of CTO as recommended by the department head, without compromising the delivery of services to clientele;
4. Ensure proper implementation of these guidelines and act accordingly should violations or irregularities be committed.

C. Employees

1. Observe properly the procedures in earning of COC and availing of CTO;
2. Request recommendation from the department head on rendering overtime services and schedule;
3. Monitor the balance of earned COCs vis-à-vis CTOs availed of.

D. Human Resource Management Office/r

1. Reflect on the time card the application for CTO filed by the employee;
2. Submit to the department head, sangguniang bayan and local chief executive a monthly report on summary of overtime services rendered and the equivalent COCs; report incidents or observations;
3. Recommend measures to improve the implementation of the guidelines on the grant of COCs and availment of CTOs.

SECTION 15. GRIEVANCE MECHANISM. Any grievances arises in the implementation of this Ordinance, the Committee shall discuss and decide the concern with the following compositions:

Chairperson: Municipal Administrator
Co-Chairperson: SB Chairman Committee on Good Government, Public Ethics and Accountability
Members: HRMO
DAMEA President
Representative from 1st level rank and file employees
Representative from 2nd level rank and file employees

SECTION 16. PENALTY. Any fraud, violations or irregularities in the implementation of this Ordinance, the official or employee involved shall be administratively held liable.

SECTION 17. REPEALING CLAUSE. All ordinances, executive orders and rules and regulations inconsistent and contradictory with the provision of this Ordinance are hereby repealed, amended or modified accordingly.

SECTION 18. SEPARABILITY CLAUSE. The provisions of this Ordinance are hereby declared separable. In the event that one or more provisions are held illegal or unconstitutional, the validity of the other provisions shall not be affected.



SECTION 19. EFFECTIVITY. This Ordinance shall take effect upon approval.

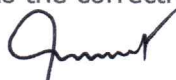
ENACTED.

RESOLVED FURTHER, to furnish copies hereof, the Mayor's Office, the Municipal Administrator, the Human Resource Management Office, the Daet Municipal Employees Association (DAMEA), the Municipal Budget Office, the Municipal Accounting Office, the Municipal Treasurer's Office, the Sangguniang Panlalawigan, the Civil Service Commission and all others concerned for their information and appropriate action;

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:


COUN. WILLIAM CARLO R. AVILA
Proponent


MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: APR 23 2021